



LIN 26/038

Migration Legislation Amendment (Annual Market Salary Rate) Instrument 2026

I, Matt Thistlethwaite, Assistant Minister for Immigration, make the following instrument.

Dated 23 March 2026

Matt Thistlethwaite
Assistant Minister for Immigration

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1 Name

This instrument is the *Migration Legislation Amendment (Annual Market Salary Rate) Instrument 2026*.

2 Commencement

- (1) Each provision of this instrument specified in column 1 of the table commences, or is taken to have commenced, in accordance with column 2 of the table. Any other statement in column 2 has effect according to its terms.

Commencement information		
Column 1	Column 2	Column 3
Provisions	Commencement	Date/Details
1. The whole of this instrument	The day after this instrument is registered.	

Note: This table relates only to the provisions of this instrument as originally made. It will not be amended to deal with any later amendments of this instrument.

- (2) Any information in column 3 of the table is not part of this instrument. Information may be inserted in this column, or information in it may be edited, in any published version of this instrument.

3 Authority

This instrument is made under the *Migration Regulations 1994*.

4 Schedules

Each instrument that is specified in a Schedule to this instrument is amended or repealed as set out in the applicable items in the Schedule concerned, and any other item in a Schedule to this instrument has effect according to its terms.

Schedule 1—Amendments

Migration (IMMI 18/033: Specification of Income Threshold and Annual Earnings and Methodology of Annual Market Salary Rate) Instrument 2018

1 Section 4 (definition of *transitional instrument*)

Omit “section 2 of”, substitute “Item 2 of Schedule 2 to”.

2 Sections 7 and 8

Omit the sections, substitute:

7 Method for determining the annual market salary rate where an Australian worker is performing equivalent work

- (1) For the purposes of subregulation 2.72(17) of the Regulations, where there is an Australian worker who is:
 - (a) employed in the same workplace as the nominee; and
 - (b) at the same location as the nominee; and
 - (c) performing equivalent work to the nominee;the method for determining the annual market salary rate must be in accordance with subsection (2) or (3).
- (2) Where there is a fair work instrument, state industrial instrument or transitional instrument applicable to an Australian worker mentioned in subsection (1), the annual market salary rate must be determined:
 - (a) to be the annual earnings specified in that instrument; or
 - (b) by reference to relevant employment documents, provided that the annual earnings are not less than the annual earnings determined under paragraph (2)(a).
- (3) Where there is no fair work instrument, state industrial instrument or transitional instrument that is applicable to an Australian worker mentioned in subsection (1), the annual market salary rate is the annual earnings that apply in relation to an equivalent Australian worker, determined by reference to relevant employment documents.

8 Method of determining the annual market salary rate where there is not an Australian worker performing equivalent work

- (1) For the purposes of subregulation 2.72(17) of the Regulations, where there is no Australian worker who is:
 - (a) employed in the same workplace as the nominee; and
 - (b) at the same location as the nominee; and
 - (c) performing equivalent work to the nominee;the method for determining the annual market salary rate must be determined in accordance with subsection (2) or (3).

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- (2) Where there is a fair work instrument, state industrial instrument or transitional instrument applicable to a nominated occupation, the annual market salary rate must be determined:
- (a) to be the annual earnings that would apply to an equivalent Australian worker as specified in that instrument; or
 - (b) by reference to relevant information, provided that the annual earnings are not less than the annual earnings determined under paragraph (2)(a).
- (3) Where there is no fair work instrument, state industrial instrument or transitional instrument applicable to a nominated occupation, the annual market salary rate is the annual earnings that would apply in relation to an equivalent Australian worker, determined by reference to relevant information.

3 At the end of the instrument

Add:

14 Application of amendments made by LIN 26/038

The amendments of this instrument made by items 1 and 2 of Schedule 1 to the *Migration Legislation Amendment (Annual Market Salary Rate) Instrument 2026 (LIN 26/038)* apply in relation to:

- (a) an application for the approval of a nomination made but not decided before the commencement of LIN 26/038; and
- (b) an application for the approval of a nomination made on or after the commencement of LIN 26/038.